# BERKELEY CITY COUNCIL BUDGET & FINANCE COMMITTEE
# REGULAR MEETING

## Thursday, October 22, 2026
## 10:00 AM

2180 Milvia Street, Berkeley, CA 94704

Teleconference Location – 1619 Edith Street, Berkeley, CA 94703

Committee Members:

Mayor Adena Ishii, Councilmembers Rashi Kesarwani and Brent Blackaby
Alternate: Councilmember Igor Tregub

This meeting will be conducted in a hybrid model with both in-person and virtual attendance. Attend this meeting remotely using Zoom. To request to speak, use the "raise hand" function in Zoom. To join by phone: Dial **1-669-254-5252 or 1-833-568-8864 (Toll Free)** and enter **Meeting ID: 165 765 5190**. To provide public comment, Press *9 and wait to be recognized by the Chair. To submit a written communication for the Committee's consideration and inclusion in the public record, email policycommittee@berkeleyca.gov. All Committee meetings are recorded.

This meeting will be conducted in accordance with the Brown Act, Government Code Section 54953. Any member of the public may attend this meeting, however, if you are feeling sick, please do not attend the meeting in person.

Pursuant to the City Council Rules of Procedure and State Law, the presiding officer may remove, or cause the removal of, an individual for disrupting the meeting. Prior to removing an individual, the presiding officer shall warn the individual that their behavior is disrupting the meeting and that their failure to cease their behavior may result in their removal. The presiding officer may then remove the individual if they do not promptly cease their disruptive behavior. "Disrupting" means engaging in behavior during a meeting of a legislative body that actually disrupts, disturbs, impedes, or renders infeasible the orderly conduct of the meeting and includes, but is not limited to, a failure to comply with reasonable and lawful regulations adopted by a legislative body, or engaging in behavior that constitutes use of force or a true threat of force.

**California Government Code Section 84308 (Levine Act)** Parties to a proceeding involving a license, permit, or other entitlement for use are required to disclose if they made contributions over $500 within the prior 12 months to any City employee or officer. Parties and participants with a financial interest are prohibited from making more than $500 in contributions to a decisionmaker for the 12 months after the final decision is rendered on the proceeding. The above contribution disclosures and restrictions do not apply when the proceeding is competitively bid, or involves a personnel or labor contract. For more information, see Government Code Section 84308.

# AGENDA

**Roll Call**

**Public Comment on Non-Agenda Matters**

## Minutes for Approval

*Draft minutes for the Committee's consideration and approval.*

**1. Minutes - October 5, 2026**

## Committee Action Items

*The public may comment on each item listed on the agenda for action as the item is taken up. The Chair will determine the number of persons interested in speaking on each item. Up to ten (10) speakers may speak for two minutes. If there are more than ten persons interested in speaking, the Chair may limit the public comment for all speakers to one minute per speaker.*

*Following review and discussion of the items listed below, the Committee may continue an item to a future committee meeting, or refer the item to the City Council.*

**2. Marina Fund Overview and Update**
**From: Parks, Recreation, & Waterfront Department**
Contact: Scott Ferris, Parks, Recreation & Waterfront, (510) 981-6700

## Unscheduled Items

*These items are not scheduled for discussion or action at this meeting. The Committee may schedule these items to the Action Calendar of a future Committee meeting.*

**3. Conversion of Two (2) Deputy City Attorney I Positions to Deputy City Attorney IV**
**From: City Attorney**
**Referred: October 13, 2026**
**Due: March 23, 2027**
**Recommendation:** Adopt a Resolution to convert two (2) existing Deputy City Attorney I positions to Deputy City Attorney IV.
**Financial Implications:** See report
Contact: Farimah Brown, City Attorney, (510) 981-6950

## Items for Future Agendas

- **Requests by Committee Members to add items to the next agenda**

## Adjournment

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*Written communications submitted by mail or e-mail to the Budget & Finance Committee by 5:00 p.m. the Friday before the Committee meeting will be distributed to the members of the Committee in advance of the meeting and retained as part of the official record.*

*This meeting will be conducted in accordance with the Brown Act, Government Code Section 54953 and applicable Executive Orders as issued by the Governor that are currently in effect. Members of the City Council who are not members of the standing committee may attend a standing committee meeting even if it results in a quorum being present, provided that the non-members only act as observers and do not participate in the meeting. If only one member of the Council who is not a member of the committee is present for the meeting, the member may participate in the meeting because less than a quorum of the full Council is present. Any member of the public may attend this meeting. Questions regarding public participation may be addressed to the City Clerk Department (510) 981-6900.*

COMMUNICATION ACCESS INFORMATION:
This meeting is being held in a wheelchair accessible location. To request a disability-related accommodation(s) to participate in the meeting, including auxiliary aids or services, please contact the Disability Services specialist at ada@berkeleyca.gov, (510) 981-6418 (V), or (510) 981-6347 (TDD) at least three business days before the meeting date. Attendees at public meetings are reminded that other attendees may be sensitive to various scents, whether natural or manufactured, in products and materials. Please help the City respect these needs.

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I hereby certify that the agenda for this meeting of the Standing Committee of the Berkeley City Council was posted at the display case located near the walkway in front of the Maudelle Shirek Building, 2134 Martin Luther King Jr. Way, as well as on the City's website, on October 15, 2026.



Mark Numainville, City Clerk

## Communications

*Communications submitted to City Council Policy Committees are on file in the City Clerk Department at 2180 Milvia Street, 1st Floor, Berkeley, CA, and are available upon request by contacting the City Clerk Department at (510) 981-6908 or policycommittee@berkeleyca.gov.*

# BERKELEY CITY COUNCIL BUDGET & FINANCE COMMITTEE
# SPECIAL MEETING MINUTES

## Monday, October 5, 2026
## 10:00 AM

2180 Milvia Street, Berkeley, CA 94704

Teleconference Location – 1619 Edith Street, Berkeley, CA 94703

Committee Members:

Mayor Adena Ishii, Councilmembers Rashi Kesarwani and Brent Blackaby
Alternate: Councilmember Igor Tregub

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# MINUTES

**Roll Call:** 10:03 a.m.

**Present:** Blackaby, Kesarwani

**Absent:** Tregub

Councilmember Tregub present at 10:04 a.m.

## Minutes for Approval

*Draft minutes for the Committee's consideration and approval.*

**1. Minutes - June 25, 2026**
**Action:** M/S/C (Kesarwani/Blackaby) to approve minutes of 6/25/2026.
**Vote:** All Ayes.

## Committee Action Items

*The public may comment on each item listed on the agenda for action as the item is taken up. The Chair will determine the number of persons interested in speaking on each item. Up to ten (10) speakers may speak for two minutes. If there are more than ten persons interested in speaking, the Chair may limit the public comment for all speakers to one minute per speaker.*

*Following review and discussion of the items listed below, the Committee may continue an item to a future committee meeting, or refer the item to the City Council.*

## Committee Action Items

**2. Amendment to Berkeley Municipal Code Chapter 7.18 to Explicitly Require Competitive Procurement for Services to Promote Accountability and Transparency and Refer Development of Regulations to City Manager**
**From: Councilmember Kesarwani (Author), Mayor Ishii (Co-Sponsor)**
**Referred: April 27, 2026**
**Due: October 13, 2026**
**Recommendation:** Adopt an ordinance amending Berkeley Municipal Code (BMC) Chapter 7.18, Expenditure Limitations, to require procurement through competitive solicitation for all city contracts for professional services and other services greater than $100,000.
Refer to the City Manager to promulgate any further regulations that may be needed related to the requirement for competitive solicitation except for emergencies and when market research justifies the business case for a sole-source procurement, in alignment with the existing purchasing manual.
**Financial Implications:** Staff time
Contact: Rashi Kesarwani, Councilmember, District 1, (510) 981-7110
**Action:** 2 speakers. M/S/C (Kesarwani/Blackaby) to send the item to Council with a Qualified Positive Recommendation as written and amended during discussion, with additional direction to further consider:

- Specifying the 5-7 year contract rebidding timeframe in the ordinance as well as the purchasing manual
- Authorizing the City Attorney's Office to promulgate legal services procurement regulations and guidelines
- Establishing annual reporting to Council on legal services contracts and amendments
- B.M.C. Section 7.18.010(A) Expenditures pursuant to Charter Article XI, Sections 67 and 67.5 is amended to read as follows:

  Except as otherwise provided in this Title, expenditures pursuant to Article XI, Sections 67 and 67.5 of the Charter of the City of Berkeley, for which ~~exceed~~ the initial amount exceeds ~~of~~ $10~~5~~0,000, inclusive only of professional services, other services, supplies, equipment, or materials (excluding leases and real estate agreements), shall require Council approval and shall be procured through competitive solicitation except in the case of emergencies pursuant to Article XI, Section 67.4. The requirement specified in Article XI, Section 67 of the Charter to select the "lowest responsible bidder" only for supplies, equipment, or materials contracts remains. Professional services and other services contracts shall be based on demonstrated competence and qualifications for the types of services to be performed, at fair and reasonable prices to the City. This requirement for professional and other services contracts to be selected via competitive procurement applies to all Charter Officers. Pursuant to Article XVI Section 113, the City Attorney retains the authority to enter into contracts without Council approval after competitive procurement of professional services, other services, supplies, equipment or materials (excluding leases and real estate agreements). The City Attorney is

## Committee Action Items

authorized to promulgate regulations to implement this section with respect to City Attorney's Office contracts. All departments, excluding the City Attorney's Office, shall follow the City of Berkeley Purchasing Manual guidelines, Section 3, for extensions of contracts and re-bid all contracts under the timeframes specified. The City Attorney's Office shall follow regulations specific to City Attorney's Office contracts.

**Vote:** All Ayes.

## Unscheduled Items

*These items are not scheduled for discussion or action at this meeting. The Committee may schedule these items to the Action Calendar of a future Committee meeting.*

- **None**

## Items for Future Agendas

- **None**

## Adjournment

**Action:** M/S/C (Tregub/Kesarwani) to adjourn the meeting.
**Vote:** All Ayes.

Adjourned at 10:46 a.m.

I hereby certify that the foregoing is a true and correct record of the Budget & Finance Committee meeting held on October 5, 2026.

_____
Keith Nesbit, Assistant City Clerk

## Communications

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There is no material for this item.

**City Clerk Department**
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Berkeley, CA 94704
(510) 981-6900

**The City of Berkeley Budget and Finance Policy Committee Webpage:**

*https://berkeleyca.gov/your-government/city-council/council-committees/policy-committee-budget-finance*




There is no material for this item.

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